

23NWCV03125 23NWCV03125

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K. L. G. vs COUNTY OF LOS

ANGELES, et al., Case No. 23NWCV03125

On August 26, 2026, the Court invited supplemental briefing on the following issue: was the Court's ruling in Plaintiff's Motion in Limine No. 3 in error in light of *Teitelbaum Furs, Inc. v. Dominion Ins. Co.* (1962) 58 Cal.2d 601? In *Teitelbaum*, the Court held that collateral estoppel does not preclude a defendant who enters a plea of guilty in a criminal action from litigating his cause for the first time in a civil action. (*Id.*, at pp. 605-06.) The parties submitted supplemental briefing on August 27, 2026.

In Plaintiff's Motion in Limine No. 3, the Court ruled that Defendants may not assert that Plaintiff consented to the sexual act or was comparatively negligent. Until further order of the Court, Defendants shall not refer to Plaintiff's consent or comparative negligence during trial. The Court's ruling does not restrict Defendants from exploring the facts and circumstances of the sexual assault.

The supplemental briefing filed by Defendants asks the Court reconsider its rulings in Plaintiff's Motions in Limine Nos. One, Two and Three to the extent they prohibit Defendants from challenging consent. More specifically, Defendants argue: 1) Juan Sanchez Medina's no contest plea in the criminal case has no preclusive effect in this civil trial; and 2) entry of default against Medina does not preclude him from testifying that Plaintiff gave consent.

The supplemental briefing filed by Plaintiff argues: 1) the

language in Teitelbaum cited by the Court in its invitation for supplemental briefing is dicta; 2) Teitelbaum does not apply to this civil action because default has been entered against Medina; 3) Medina's criminal conviction cannot be relitigated because Medina's counsel in the criminal case stipulated to a factual basis for Medina's no contest plea; and 4) independent grounds exist to sustain the Court's ruling in Plaintiff's Motion in Limine No. 3.

Upon further review, the Court determines that Medina's criminal conviction for a felony violation of Penal Code § 289, subd. (a), precludes evidence of Plaintiff's consent in the civil trial because such evidence would have been inadmissible in a criminal trial. Evidence of consent by a person confined in a detention facility to sexual activity with jail staff is not a defense to a criminal prosecution. (Penal Code § 289.6, subd. (e).) A jail staff person who engages in sexual activity with a confined person in a detention facility is guilty of a public offense. (Penal Code § 289.6, subd. (a)(2).) Those guilty of a public offense include an "employee or officer of a public entity detention facility" and a "volunteer of a private or public entity detention facility." (Id.) "Sexual activity" includes sexual penetration as defined in subdivision (k) of Penal Code section 289. (Penal Code § 289.6, subd. (d).) Thus, the issue of consent was necessarily decided against Medina by virtue of his no contest plea, and collateral estoppel bars evidence of consent in the civil trial. The legislative history behind the enactment of Penal Code § 289.6 recognizes that "sexual activity between correctional officers and inmates in detention facilities 'is analogous to statutory rape Both types of offenses—statutory rape and sex between a correctional employee and a detained person—arguably are rooted in a policy aimed at an imbalance of power between the parties so significant as to vitiate any purported consent.'" (People v. Bojorquez (2010) 183 Cal.App.4th 407, 420.) These concerns apply with equal force in the civil trial. Accordingly, the Court's ruling in Plaintiff's Motion in Limine No. 3 STANDS for the reasons set forth above. Defendants' request for reconsideration of Plaintiff's Motions in Limine Nos. One, Two and Three is DENIED.